

Stereo. H C J D A-38.
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.78377 of 2025

Farhat Parveen

Versus

Government of the Punjab through Secretary Population
Welfare Department, etc.

J U D G M E N T

Date of hearing:	06.05.2026
Petitioners by:	M/s Hafiz Muhammad Tariq Naseem, Muhammad Akmal Khan, Mehmood Ahmad Qazi and Muhammad Tariq Shamim, Advocates.
Respondent-State by:	Barrister Raja Hashim Javed, Assistant Advocate General, Punjab.
Respondents- Department by:	Mr. Khurram Abbas Wahga, Law Officer, with Muhammad Imran, DDA, Nabeel Christopher, ADA, Abubakar, Assistant Legal, Aftab Ahmad Awan, DPWO Sargodha.

MALIK JAVID IQBAL WAINS, J.: This judgment shall decide the instant writ petition along with connected writ petitions bearing Nos., 76039 of 2025, 72597 of 2025, Crl. Org. No.20768 of 2026 & 20796 of 2026, as common questions of law and fact are involved therein.

2. Brief facts of the leading case i.e. W.P. No.78377/2025, are that the petitioner was appointed as Family Welfare Worker (BS-08) on contract basis under Project Management Unit for the Scheme titled “Expansion of Family Welfare Centres and Introduction of Community Based Family Planning Workers” (2014-18). It was asserted that vide letter dated 25.06.2021, Government of Punjab converted the post of the petitioner from development to non-development side, however the respondents-department did not regularize her service, resultantly, the petitioner along with others filed a writ petition No.3655/2022 before this Court, wherein direction was issued to respondents to look into their grievance, while treating the same as representation, and redress it strictly in accordance with law, after hearing

the petitioner and all concerned within a period of thirty days, vide order dated 24.01.2022.

3. In compliance of order dated 24.01.2022 passed by this Court, respondent No.3/Director General, Population Welfare Department, Government of the Punjab, Lahore rejected the representation of the petitioner vide order dated 07.03.2022, prompting the petitioner to file a W.P. No.21553/2022 before this Court. In the said writ petition, again direction was issued to respondents to treat the petition as representation and redress grievance of the petitioner strictly in accordance with law, after hearing the petitioner and all concerned, within a period of thirty days. It was averred that the order dated 07.03.2022 was not complied with by the respondents, resultantly one Muhammad Imtiaz Ahmed filed a contempt petition and respondents while appearing before this Court produced a copy of order dated 11.04.2023 whereby representation of the petitioner was rejected.

4. The petitioner further maintained that another W.P. No.31194/2023 was filed before this Court, which was allowed vide order dated 28.03.2024, in terms that respondents were directed to refer/re-examine the cases of petitioners in line with the parameters laid down by this Court in the case titled “Rana Saifullah & others vs. Province of Punjab through Chief Secretary, Lahore & another and by the Hon’ble Supreme Court of Pakistan in Civil Petition No.2187-L/2023 titled “Province of Punjab through Chief Secretary Punjab, Lahore, etc. vs. Zain Khalid, etc.” It was further asserted that respondents did not comply the order dated 28.03.2024, whereupon contempt petition bearing Crl. Org. No.79928-W of 2024 was filed before this Court and during pendency of the same, impugned minutes of the meeting of the Scrutiny Committee dated 29.05.2024 were produced whereby claim of the petitioner for regularization was rejected, hence contempt petition was disposed of vide order dated 03.03.2025, necessitating the petitioner to file this writ petition.

5. Further, in connected W.P. No.76039/2025, challenge has specifically been made to the order dated 28.12.2024 passed by the District Population Welfare Officer, whereby representation of the petitioners was declined. Likewise, in other connected W.P. No.72597/2025, besides the common

grievance, the petitioners have additionally pleaded that after conversion of the project from development to non-development side, their right to regularization had accrued and prayed for implementation of order passed by this Court dated 28.03.2024 in W.P. No.32733 of 2023, titled “Ahmad Raza & others vs. Government of the Punjab through Secretary, Population Welfare Department, Lahore & others. Further in both Crl. Org. petitions, the petitioners seeks implementation of order dated 03.03.2026 passed by this Court in W.P. No.78377 of 2025 and 76039 of 2025 and to take action against respondents for violation thereof.

6. Report/para-wise comments were requisitioned from the respondents-department, which have been submitted. It is the contention of respondents that petitioners were appointed on contract basis under an ADP Scheme titled *“Expansion of Family Welfare Centers & Introduction to Community Based Family Planning Workers 2014-2018”* (extended up to 30.06.2021) by the Population Welfare Department, Punjab. This is their 4th round of litigation before this Court, having previously filed Writ Petitions No.9077/2022, 32728/2023, and 79855/2024, all of which were disposed of with directions to consider their cases for regularization. It was contended that representations of the petitioners were examined by the concerned Scrutiny Committees but were rejected on the ground that being project employees, they do not fall within the definition of “contract employee” under Section 2(c) of the Act, 2018 (amended in 2019), which explicitly excludes persons appointed to a post in a project, programme, or project management unit and are not entitled for regularization.

7. The department further submitted in report that the petitioners have no vested right to seek regularization, as their offer of appointment clearly stated that contract appointment shall not confer any right of regular appointment. It was their contention that the Act, 2018 itself stands repealed w.e.f. 31.10.2025. The Provincial Cabinet in its 24th meeting held on 27.03.2025 approved extension of existing employees’ contracts only up to 31.12.2025, with the explicit condition of no possibility of regularization. Thus, the contracts of the petitioners stood expired on 31.12.2025 and their salaries had already been paid accordingly.

8. In view of this position, the department submits that the petitioners are neither entitled to regularization nor to extension of their contracts, and that the instant writ petition is not maintainable. However, as a benefit, the petitioners may participate in a fresh recruitment process when initiated, and shall be given age relaxation in the upper age limit as well as experience marks (up to a maximum of 10 marks) in terms of S&GAD's policy letter dated 06.06.2022.

9. Arguments heard. Record perused.

10. From a perusal of the impugned minutes of the Scrutiny Committee meeting dated 29.05.2024 and the impugned order dated 28.12.2024, it transpires that the respondents-department, while scrutinizing the cases of the petitioners under the Act, 2018, declared the petitioners to be project employees and, consequently, held that they do not fall within the definition of a "contract employee" as provided under Section 2(c) of the Act, 2018.

11. In the above backdrop, the foremost questions requiring determination by this Court are as follows:

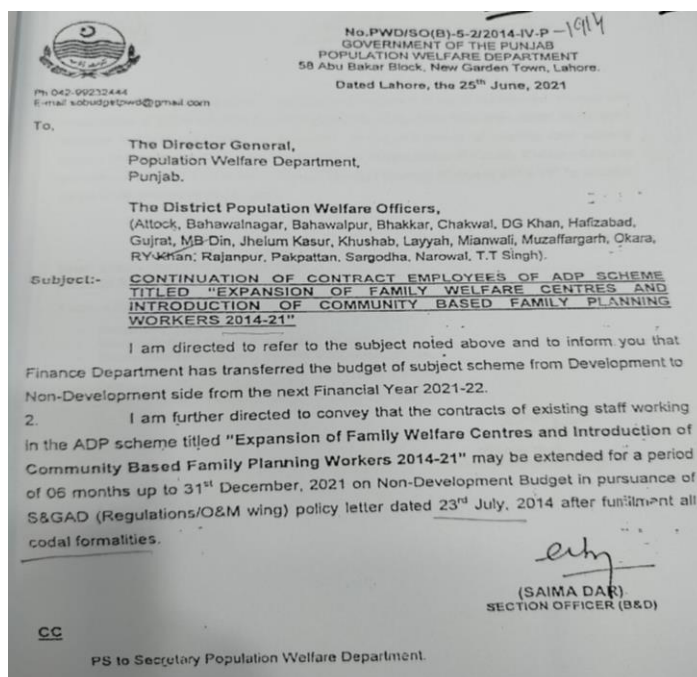
i) Whether the petitioners, who were initially appointed on a contractual basis under the Annual Development Programme (ADP) Scheme titled "Expansion of Family Welfare Centers and Introduction to Community Based Family Planning Workers", and whose services continued after the creation of 3,000 posts through SNE vide letter dated 03.03.2021 issued by the Finance Department, followed by the conversion of the project from the development side to the non-development side vide notification dated 25.06.2021, and whose contracts were thereafter extended against the newly created posts pursuant to the approval of the then Chief Minister dated 23.12.2021 up to 30.06.2022, and subsequently extended by the Provincial Cabinet being competent authority from 01.07.2022 to 31.03.2026 against sanctioned posts of BPS-1 to BPS-9, can still be treated as project employees, or whether they fall within the ambit of "contract employee" as defined under Section 2(c) of the Act, 2018 (as amended in 2019), thereby entitling them to regularization of their services under the law?

(ii) Whether the action of the respondents in extending the benefit of regularization to other similarly situated employees of the same department while denying the same benefit to the petitioners amounts to discrimination and unequal treatment, and is therefore violative of Articles 9 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973?

12. It is an admitted position on the record that the petitioners were appointed during the years 2014 and 2015 under the ADP Scheme

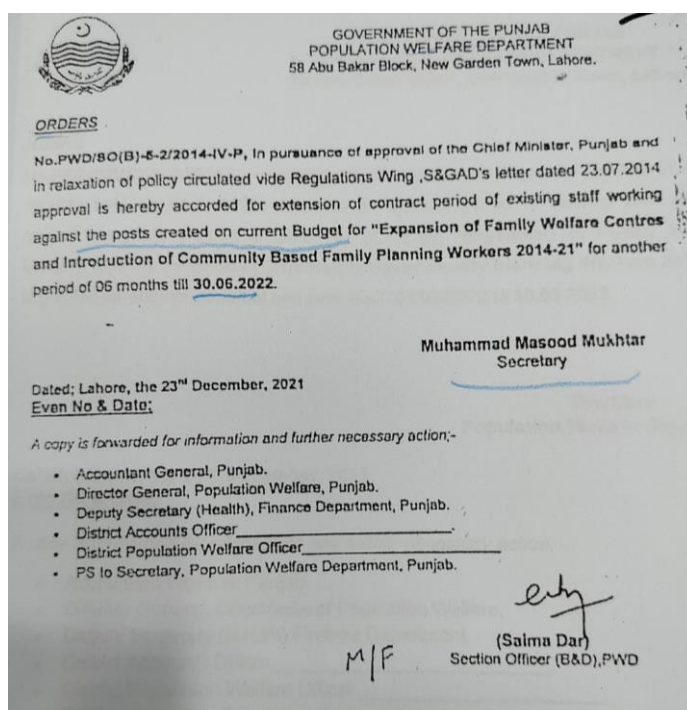
titled “Expansion of Family Welfare Centers and Introduction of Community Based Family Planning Workers (2014-2018)” against various posts, including Family Welfare Assistants, Family Welfare Workers, Helpers/Chowkidars and other allied positions. The appointments were made through a duly advertised and transparent recruitment process, and since their induction the petitioners have continuously discharged their duties without interruption.

13. The record manifests that the Government of the Punjab, Finance Department, vide Letter No. SO(H-I)5-157/2021-22 (SNE) dated 31.03.2021, sanctioned and created three thousand (3000) posts of different categories for the aforesaid scheme through the Schedule of New Expenditure (SNE), Budget Estimates 2021-22. Subsequently, the Finance Department, Government of the Punjab, through letter No.PWD/SO(B)/5-2/2014-IV-P-1914, dated 25.06.2021, converted the said ADP Scheme from the development side to the non-development side with effect from the financial year 2021-22. Consequent upon such conversion, the tenure of the employees working under the scheme, including the petitioners, was extended for a further period of six months up to 31.12.2021 against the non-development budget, in accordance with the policy contained in the S&GAD (Regulations/O&M Wing) letter dated 23.07.2014. For facility of reference, the relevant letter is reproduced hereunder: -



14. Subsequently, on 23.12.2021, the matter was placed before the then Chief Minister, Punjab, seeking approval for the extension of the contractual

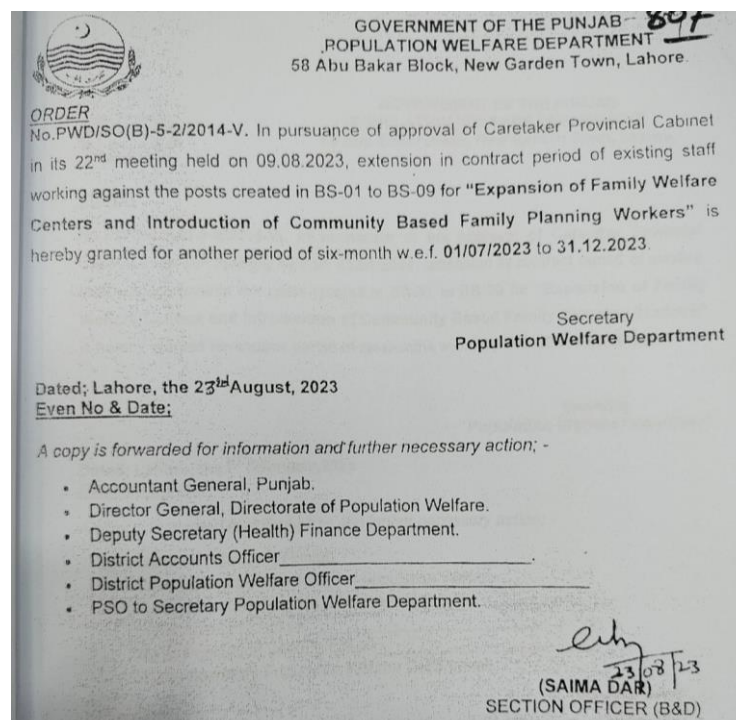
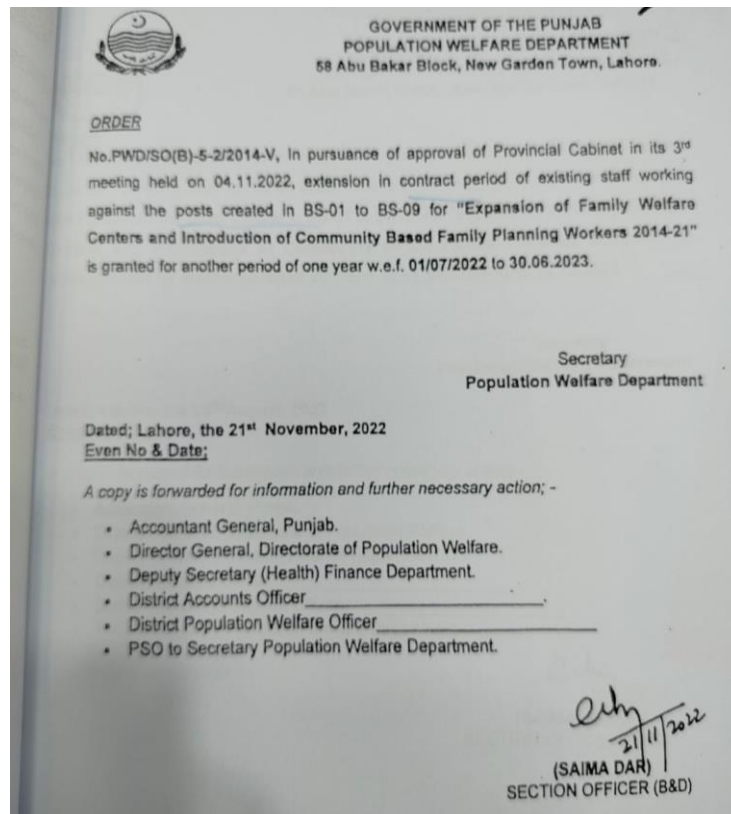
engagement of the existing staff working against sanctioned posts created under the current budget. The then Chief Minister, Punjab, while relaxing the policy guidelines contained in the S&GAD (Regulations/O&M Wing) letter dated 23.07.2014, as previously approved for filling vacant posts upon their conversion from the development side to the non-development side, accorded approval for the extension of the contract period of the existing staff serving against the posts created under the current budget for “Expansion of Family Welfare Centres and Introduction of Community Based Family Planning Workers 2014-2021 for a period of six months, from 01.01.2022, to 30.06.2022 vide order No. PWD/SO(B)/5-2/2014-IV-P, dated 23.12.2021. A copy of said order is reproduced below for ready reference: -



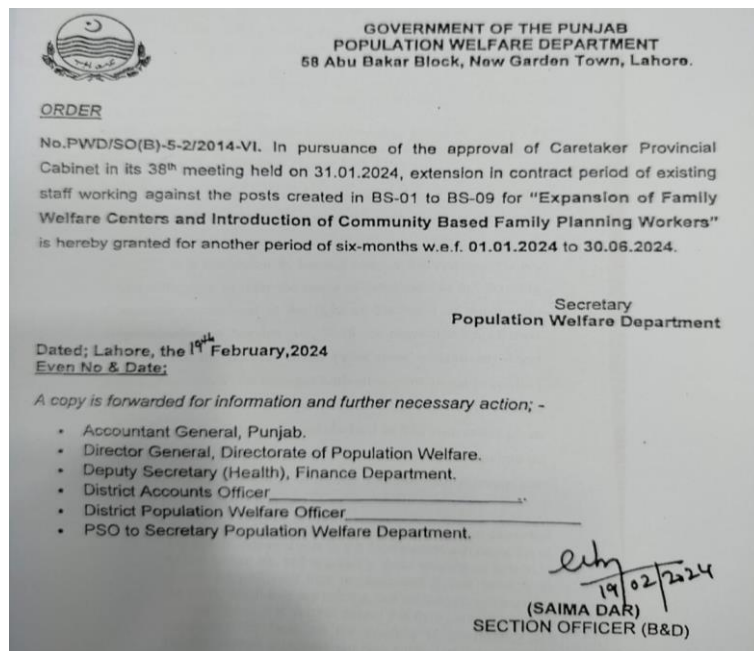
15. The record thus reflects that, at the time of extension granted by the then Chief Minister, Punjab, the petitioners' contractual appointments were no longer treated as being against the ADP Scheme; rather, they were continued against posts created under the current budget, and the said continuation was approved through relaxation of the policy guidelines contained in the S&GAD (Regulations/O&M Wing) letter dated 23.07.2014. Consequently, it is evident that the petitioners contractual engagements stood shifted from the ADP Scheme to the posts created under the current budget with the approval of the competent authority the then Chief Minister, Punjab.

16. Furthermore, vide Order No. PWD/SO(B)-5-2/2014-V, dated 21.11.2022 and Order No. PWD/SO(B)-5-2/2014-V dated 23.08.2023, the

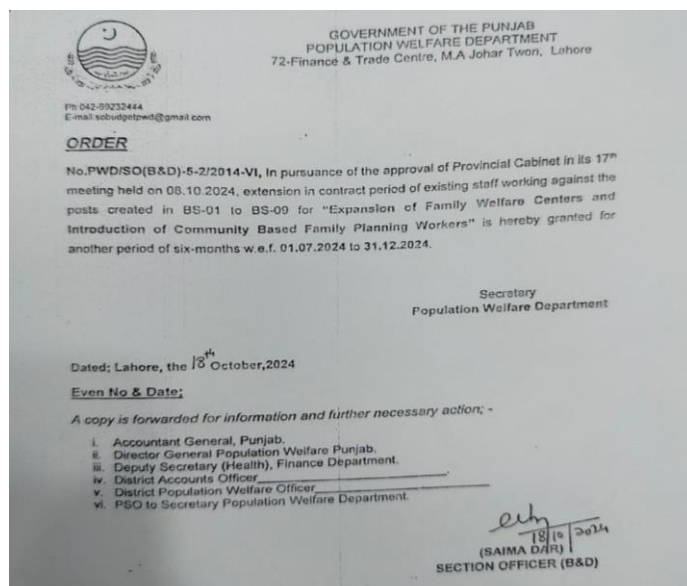
Secretary, Population Welfare Department, Lahore, pursuant to the approval accorded by the Provincial Cabinet, extended the contractual engagements of the staff working against sanctioned posts of BS-01 to BS-09. The said extensions were granted for the periods from 01.07.2022 to 30.06.2023 and from 01.07.2023 to 31.12.2023, respectively. Copies of the aforesaid orders issued by the Population Welfare Department are reproduced below for ready reference: -



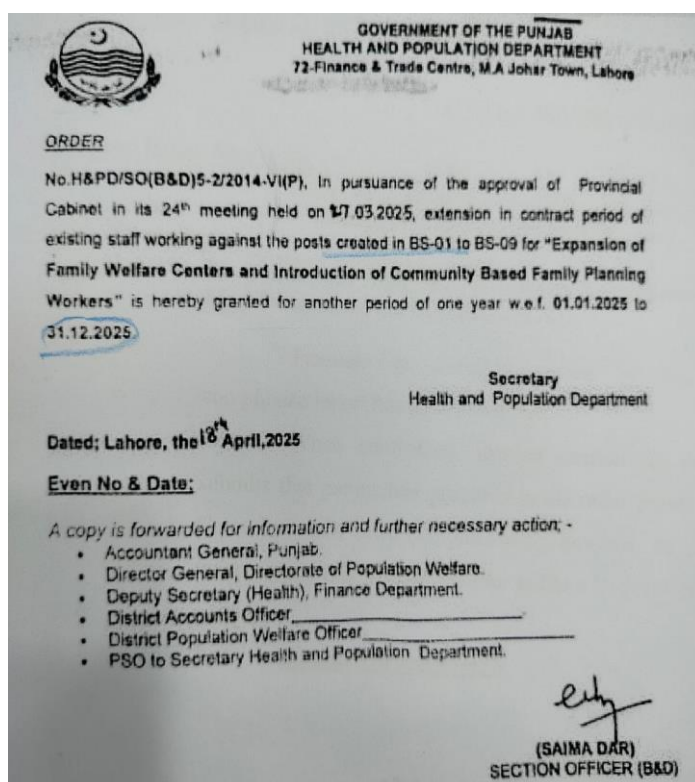
17. Likewise, the contractual engagements of the petitioners were further extended for the period from 01.01.2024 to 30.06.2024 vide Order No. PWD/SO(B)-5/2014-VI, dated 19.02.2024. The record reflects that prior approval of the Caretaker Provincial Cabinet was duly obtained for the said extension. Pursuant thereto, the Population Welfare Department extended the contractual engagements of staff working against sanctioned posts of BS-01 to BS-09 for the aforesaid period, i.e., from 01.01.2024 to 30.06.2024. A copy of the said order is affixed below for ready reference: -



18. Further, contract period of employees/petitioners was extended after approval of Provincial Cabinet in its 17th meeting held on 08.10.2024, from 01.07.2024 to 31.12.2024, vide order No.PWD/SO(B&D)-5/2014-VI, dated 18.10.2024. Pursuant thereto, the department extended contractual period of staff working against sanctioned posts of BS-01 to BS-09 for the aforesaid period. The order is reproduced below: -



19. The Provincial Cabinet further approved extension of contractual engagements of petitioners for a period of one year, from 01.01.2025 to 31.12.2025. Pursuant to said approval, the Population Welfare Department extended contractual engagements of staff working against sanctioned posts of BS-01 to BS-09 for aforesaid period. Consequently, Secretary, Health and Population Department, issued Order No.H&PD/SO(B&D)5-2/2014-VI(P), dated 18.04.2025, giving effect to the approval of the Provincial Cabinet. Copy of the said order is given below: -



20. Finally, the Provincial Cabinet accorded approval for the extension of the contractual engagements of the employees for the period from 01.01.2026 to 31.03.2026 vide order No.SO(B&A)5-2/2014-VI, dated 13.04.2026 issued by the Secretary Health & Population Department. The record further reflects that the petitioners have remained in continuous service of the respondents-department for more than a decade, and their contract period was extended from time to time by the competent authority without any material interruption. The aforementioned successive approvals, initially granted by the then Chief Minister, Punjab, vide order dated 23.12.2021, while relaxing policy guidelines dated 23.07.2014, and thereafter by the Provincial Cabinet being competent authority from time to time till 13.04.2026, are of considerable significance.

21. The Scrutiny Committee constituted at district level concluded, as recorded in the order dated 28.12.2024, which has been impugned through

this petition, that the petitioners were appointed to the project posts and therefore fall outside the definition of “contract employee” as envisaged in Section 2(c) of the Act, 2018 (amended in 2019), which explicitly excludes persons appointed to a post in a project, programme, or project management unit. This Court is unable to sustain the said finding.

22. A cumulative reading of the aforesaid approvals leaves no room for doubt that, after the approval dated 23.12.2021, the petitioners were no longer being retained as employees of a development project or ADP scheme. Rather, their contractual engagements stood continued against sanctioned posts created under the current budget, a position that was consistently recognized and reaffirmed through subsequent approvals accorded by the Provincial Cabinet. Consequently, the respondents cannot, at this stage, legitimately treat the petitioners as project employees when the competent authority itself approved their continuation against sanctioned posts in BS-01 to BS-09.

23. Before proceeding further, it is observed that the judgments relied upon by the respondents, titled Qadeer Ali etc. vs. Province of Punjab etc. (2024 PLC (C.S.) 1167), rendered by a learned Single Bench and subsequently upheld by a learned Division Bench of this Court reported as PLJ 2025 Lahore 995 (DB), are not applicable to the controversy involved in the present case.

24. In the aforesaid cases, the issue before the Court was limited to determining whether employees appointed under a project acquired a vested right to regularization solely on the ground that the project had been converted from the development side to the non-development side. The factual backdrop of the present case is, however, materially distinguishable. The record reveals that both prior to and subsequent to the conversion of the project from the development side to the non-development side, 3,000 posts were created through the Schedule of New Expenditure (SNE) under the current budget with the approval of the Ministry of Finance. Thereafter, the contracts of the petitioners were extended against sanctioned posts in BPS-1 to BPS-9 with the approval of the then Chief Minister vide order dated 23.12.2021 for a period of six months up to 30.06.2022. Subsequently, the Provincial Cabinet, being the competent authority, accorded successive

approvals for the continuation and extension of the petitioners' contractual appointments against sanctioned posts in BPS-1 to BPS-9 from 01.07.2022 up to 13.04.2026. In these circumstances, the factual foundation of the present case is substantially different from that involved in *Qadeer Ali* (supra). Accordingly, the aforesaid judgments are clearly distinguishable on facts and do not govern the determination of the controversy presently before this Court.

25. The contention advanced by the learned Legal Advisor for the respondents-department that the Act, 2018 stands repealed with effect from 31.10.2025 and, therefore, the petitioners are not entitled to any relief, is devoid of legal substance and does not carry any force in the eyes of law. The legal effect of the repeal of the Punjab Regularization of Service Act, 2018 has already been examined by a learned Single Bench of this Court in the case titled *"Mohsin Abbas vs. Secretary Communication"* (2026 LHC 1419). While adjudicating upon the consequences of such repeal, the learned Single Bench laid down the relevant legal principles, which were subsequently affirmed by a learned Division Bench of this Court. The ratio decidendi of the aforesaid judgment is applicable to the present case, though only to the limited extent of determining the legal effect and consequences arising from the repeal of the Act, 2018. Accordingly, the observations made therein shall be considered for resolving the issue relating to the impact of the repeal of the said enactment on the rights and claims asserted by the petitioners in the instant matter. Relevant paragraphs of the aforementioned judgment are reproduced as under: -

14. Adverting to the core legal question formulated hereinabove regarding the effect of the Repealing Act, it would be appropriate to understand the object and scope of a repealing enactment. Repealing a law is the legislative act of officially revoking, cancelling, or abolishing an existing statute, rendering it no longer in force. This process, *inter alia*, aims at removing obsolete laws, and adapting to changing socioeconomic conditions. The effects of a repeal are largely determined by examining as to whether the new legislation includes savings clause to protect existing rights and proceedings. To ensure legal continuity, repealing legislation uses saving clause/provision, which dictates that, unless otherwise stated, a repeal does not affect the previous operation of the law, or any rights, liabilities, and penalties accrued, nor does it affect ongoing legal proceedings to prevent the immediate, disruptive destruction of accrued rights and pending cases.

15. Effect of repeal of an enactment is dealt with by Article 264 of the Constitution of the Islamic Republic of Pakistan, 1973 ("the

Constitution”) that reads as under:

“264. Effect of repeal of laws. Where a law is repealed, or is deemed to have been repealed, by, under, or by virtue of the Constitution, the repeal shall not, except as otherwise provided in the Constitution

(a) revive anything not in force or existing at the time at which the repeal takes effect;

(b) affect the previous operation of the law or anything duly done or suffered under the law;

(c) affect any right, privilege, obligation or liability acquired, accrued or incurred under the law;

(Emphasis supplied)

The effect of repeal of a statute is also envisaged under Section 4 of the Punjab General Clauses Act, 1956 (“**the Act 1956**”), which reads as under:

“4. Effect of Repeal.— (1) Where this Act or any other Punjab Act repeals any enactment then, unless a different intention appears, the repeal shall not—

(a) revive anything not in force or existing at the time at which the repeal takes effect;

(b) affect the previous operation of any enactment so repealed or anything duly done or suffered thereunder; or

(c) affect any right, privilege, obligation or liability acquired, accrued or incurred under any enactment so repealed; or

(d) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against any enactment so repealed; or

(e) affect any investigation, **legal proceeding** or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid; and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed as if the Repealing Act had not been passed.

(2) The provisions of sub-section (1) shall apply on the expiry or withdrawal of any Ordinance promulgated by the Governor as if it had been repealed by the Punjab Act.”

(Emphasis supplied)

Section 2(2) of the Repealing Act also contains a saving clause that reads as under:

“2. Repeal and Saving.—(1).....

(2) Notwithstanding the repeal of the Punjab Regularization of Service Act, 2018 (XV of 2018) under sub-Section (1), **anything done or action taken** under any provision of the repealed Act, shall continue to have effect **as if the said Act has not been repealed.**”

(Emphasis supplied)

16. What is required to be determined is the scope of words “anything done or action taken” and “shall continue to have effect as if the said Act has not been repealed” used in Section 2(2) of the Repealing Act. This provision of the Repealing Act envisages a legislative fiction. It contemplates that any act done or action taken under the Regularization Act shall continue to have effect as if the Regularization Act has not been repealed. The expression ‘anything done or action taken’ are to be interpreted keeping in sight the fact that the legislature in its wisdom conferred an entitlement/eligibility to those contractual employees who completed three years’ continuous service subject to certain conditions as examined hereinabove i.e., existence of vacancy etc., and nothing else can be an impediment to nonsuit such employees let alone inaction on part of the administrative department concerned, to process/submit the case of such employees to the appointing authority for regularization. The Supreme Court of Pakistan¹⁶ has explained that Article 264 of the Constitution expressly saves “*any investigation, legal proceeding or remedy*” in respect of an accrued right or privilege and permits such proceeding to be “*instituted, continued or enforced ... as if the law had not been repealed.*”

17. Keeping in sight the above analysis of Article 264 of the Constitution, Section 4 of the Act 1956, and Section 2(2) of the Repealing Act, this Court is of the opinion that where a contractual employee had completed the requisite three years’ of continuous service during the subsistence of the Regularization Act, said employee is entitled that his case be dealt with as if the Regularization Act is still holding the field irrespective of whether the employer department of the Government itself processed the case of such employee for regularization or such employee filed an application or a constitutional petition in this regard and in the meanwhile the contractual term expired inasmuch as any other interpretation would defeat the beneficial object of the Regularization Act, which the Supreme Court¹⁷ has recognized in the following terms:

10. There is no improbability in our mind to put into clear words that the Act was promulgated with the fair intention to accommodate and regularize the services of the contractual employees who gave their

¹⁶ *Muhammad Arif vs. The State and another* (1993 SCMR 1589).

¹⁷ *Qasim Mehmood and others, supra* 6.

blood, toil, tears, and sweat for many years. Therefore, it is the responsibility of the Government to apply and allow the benefit to all employees placed in equal and similar circumstances without any discrimination, and not to pick and choose the employees for conferring the benefit or advantage of this law. The implementation of the Act should be unbiased and nondiscriminatory, rather it should be evenhanded, fair and square. When the law giver enacts any beneficial law, it must be implemented across the board with assiduousness and meticulousness without any conservative or rigid approach. It is often seen that the implementation of beneficial statutes meant for civil servants and labourers are unnecessarily delayed, which forces the deprived persons to knock the doors of the courts. If the implementation is made in its letter and

spirit within a reasonable period of time, then this of course would also decrease unnecessary burden on the court's docket.

(Emphasis supplied)

Moreover, status of those employees whose cases were processed before the passing of the Repealing Act and not concluded or who promptly filed the application and/or a constitutional petition while they were in service stands even on better footings than those whose contract expired and the administrative department did not discharge its obligation of processing and/or placing their case for consideration to regularize said employees. Therefore, reliance placed by the petitioners' side on case of *Muhammad Shahid Sharif supra* is apt, and it is erroneous on part of the Government to contend that the effect of repeal has not been considered by this Court in the said case.

18. The principal objection of the Government is that with the promulgation of the Repealing Act, the statutory foundation for regularization has ceased to exist and, therefore, no employee can now assert any enforceable claim on the basis of the Regularization Act. It is contended that contractual engagement, by its very nature, does not confer a vested right and that the repeal has foreclosed all pending or prospective claims. The argument, though attractive at first blush, does not withstand constitutional and statutory scrutiny in cases where the eligibility of an employee had matured during the currency of the Regularization Act. The distinction between a mere expectation and a matured entitlement is crucial. Where the statutory preconditions—such as completion of three years' continuous service against a sanctioned post—stood fulfilled while the Regularization Act remained in force, the employee's right to be considered in terms of the Regularization Act cannot be treated as illusory or inchoate.

19. Scope of saving clause of the Repealing Act can be analyzed from another perspective. It is imperative to note that Section 10 of the Regularization Act reinforces the position that the Regularization Act is a beneficial legislation. Section 10 reads as under:

“10. Option for regularization.—A contract employee who does not wish to be regularized shall furnish his option to the appointing authority within sixty days from the commencement of the Act; otherwise, he shall be deemed to have opted for regularization.”

Section 10 of the Regularization Act, if read in its true perspective and in harmony with the overall statutory scheme, demonstrates that the legislature created a substantive right coupled with a statutory option in favour of contractual employees. The provision was not merely procedural; it conferred upon such employees a choice—either to opt for regularization under the Regularization Act or to continue under the contractual regime. Significantly, the legislature did not leave the matter at large. It incorporated a deeming clause (Section 10) to the effect that where an eligible employee did not exercise the option to decline regularization, he or she would be deemed to have accepted regularization in accordance with law. This deeming clause was not ornamental; it created a legal fiction designed to advance the object of the statute. The fiction operated beneficially, ensuring that an employee's silence would not be construed to his detriment but rather in favour of security of tenure. The moment the statutory conditions—most notably the completion of three years' service

against a sanctioned post—stood fulfilled during the currency of the Regularization Act, the legal consequences contemplated by Section 10 stood attracted. At that stage, the right ceased to be contingent upon executive discretion and acquired the character of a statutory entitlement.

20. The matter needs to be examined from yet another angle. The State—being a model employer—cannot rely upon legislative transition to defeat the rights that had already ripened under a validly enacted statute. To permit retrospective divestment, in absence of clear legislative mandate, would offend the rule of law and the constitutional guarantees. In addition, Section 4 of the Regularization Act imposed a mandatory obligation upon the competent authority to process cases of eligible employees in accordance with law. Once the qualifying service stood completed, the authorities were under a statutory duty to examine and process such cases. The failure of the department to formally issue a notification cannot defeat the substantive right that had already crystallized. Administrative inaction cannot nullify a statutory consequence. It may also be instructive to draw guidance from comparative constitutional jurisprudence. The Supreme Court of India¹⁸ directed regularization of long-serving contractual employees even in the absence of a specific regularization statute. The decision was anchored in constitutional principles of fairness and the doctrine that the State must act as a model employer. The Supreme Court of India held that fundamental rights are not diluted merely because employment is contractual, and that long years of service generate equitable considerations, which cannot be defeated by mechanical reliance on the contract clauses and the State, as a welfare entity, was cautioned against adopting a purely technical or commercial approach to disengage such employees.

¹⁸ *Bhola Nath v. State of Jharkhand & ORS* (2026 INSC 99)

19. In view of the above discussion, the present as well as connected petitions are **disposed of** in the following terms:

- i. The Repealing Act is applicable prospectively; and in cases where the petitioners are in service under a contract and performing their duties and have completed a period of three years' service prior to 31.10.2025, their cases shall be dealt with and forwarded for regularization strictly in accordance with Sections 3 and 4 of the Regularization Act;
- ii. In cases where the petitioners' three-year service period was completed and they filed an application for regularization before the cut-off date, i.e., 31.10.2025, or approached this Court and a direction was passed for deciding their application and the same has been rejected merely on the basis of repeal of the Regularization Act or the expiry of the contract, the impugned orders are set aside and their cases shall be processed afresh in accordance with Sections 3 and 4 of the Regularization Act;

26. That the contractual appointments of the petitioners were continuously extended with effect from 01.01.2022 against sanctioned posts in BPS-01 to BPS-09 from 01.07.2022 up to 13.04.2026, through successive

approvals accorded by the Provincial Cabinet, being the competent authority. It is an admitted position that such extensions were granted during the subsistence of the Act, 2018. As a consequence of their uninterrupted service against the sanctioned posts, the petitioners completed the minimum qualifying period of three years' service prescribed under the Act, 2018 prior to the cut-off date i.e. 31.10.2025. The petitioners, therefore, fulfilled the statutory eligibility requirement for consideration of their cases for regularization under the Act, 2018.

27. The continuous extensions granted by the competent authority, coupled with the petitioners' completion of the requisite qualifying service during the currency of the Act, vested to them a right to have their cases considered for regularization strictly in accordance with the provisions of the Act, 2018. Such accrued right could not be ignored or defeated except in accordance with law. Reliance in this regard is placed on the judgment of the Hon'ble Federal Constitutional Court of Pakistan rendered in F.C.P.L.A.Nos.508, 591, 346, 347, 348, 589, 267, 593, 130 & 353 of 2025 titled "The Province of Sindh Versus Muhammad Rizwan Khan & others", the relevant extract of judgment is hereby reproduced hereinafter: -

“4.....the relevant event, which resulted in the accrual of the right, was the death of the civil servant. As and when the death of a civil servant takes place, one of the children and/or spouse acquires the right to be appointed in the civil service. The process of application and/or a formal appointment letter are administrative acts. Since right had accrued in favour of private respondents, hence judgment of the Supreme Court does not come in their way for appointment on deceased employee children/spouse quota.....”

28. Consequently, the case of the petitioners squarely falls within the scope and ambit of Section 2(c) of the Act, 2018. The exclusion pertaining to “project employees” ceased to operate once the petitioners were adjusted and retained against duly sanctioned posts in BPS-01 to BPS-09, which had been created under the current budget through the Schedule of New Expenditure (SNE) pursuant to the approval accorded by the Ministry of Finance and the then Chief Minister, Punjab, vide order dated 23.12.2021. Thereafter, their contractual appointments were continuously extended from time to time by the Provincial Cabinet, being the competent authority, against sanctioned posts in BS-01 to BS-09.

29. The uninterrupted continuation of the petitioners' services through successive approvals of the Provincial Cabinet is indicative of the fact that the duties and functions performed by them were not temporary, but rather constituted ongoing and recurring requirements of the department. Such a factual scenario brings the petitioners within the beneficial framework of the Act, 2018.

30. In view of the foregoing circumstances, and in light of the principles enunciated by the superior Courts while interpreting and applying the provisions of the Act of 2018, the petitioners are entitled to have their cases considered for regularization strictly in accordance with law. Any contrary interpretation would defeat the object and spirit of the legislation, which was enacted to provide relief to eligible employees serving continuously against sanctioned posts.

31. The Scrutiny Committee, however, failed to advert to these significant developments and proceeded on the assumption that the petitioners continued to remain project employees merely because their initial appointments were made under a development scheme. Such an approach is legally unsustainable. It defeats the beneficial and remedial object of the Act, 2018, which was enacted to provide regularization to such eligible employees as had rendered continuous service on contract against the regular and recurring needs of Government departments.

32. Once the Chief Minister Punjab, approved the extension of contract of the petitioners against posts created under the current budget while relaxing the policy dated 23.07.2014, and the Provincial Cabinet being competent authority thereafter repeatedly extended their contractual engagements against sanctioned posts in BS-01 to BS-09, the temporary and developmental character of their employment stood substantially altered. In such circumstances, the petitioners could not lawfully be denied the status and benefits available to contract employees merely on account of the nomenclature attached to their original appointment orders.

33. Any interpretation to the contrary would frustrate the legislative intent underlying the Act of 2018 and would result in arbitrary discrimination against employees who have continuously served the respondents-department for a considerable period against its regular and permanent

requirements. Accordingly, the finding of the Scrutiny Committee that the petitioners were appointed against project posts and, therefore, fall outside the definition of “contract employee” as contemplated by Section 2(c) of the Punjab Regularization of Service Act, 2018 (as amended in 2019), cannot be sustained and is liable to be set aside.

34. The august Supreme Court of Pakistan, while examining the question of regularization of employees initially appointed under development projects in the Education Department, Government of the Punjab, under the Punjab Regularization of Service Act, 2018, in the case titled “Province of Punjab through Chief Secretary, Lahore and others vs. Qasim Mehmood and others” (2025 SCMR 14) reiterated and reaffirmed the settled principles governing the field. The relevant observations made in paragraphs 9 and 10 of the said judgment are reproduced below for ready reference: -

“9. To enjoy the protection of law and to be treated in accordance with law is an inalienable right of every citizen. The sagacity of Article 4 of the Constitution of the Islamic Republic of Pakistan, 1973 ("Constitution") accentuates the doctrine of equality before law or equal protection of law and no action detrimental to the life, liberty, body, reputation, or property of any person can be taken except in accordance with law. In all fairness, the public functionaries are duty-bound to perform in good faith with sheer dedication but within the peripheries of their powers, to ensure equal treatment, being mindful to the tenets and precepts enshrined under Article 3 of the Constitution wherein the State is obligated to ensure the elimination of all forms of exploitation and commit to the gradual fulfillment of the fundamental principle: "from each according to his ability, to each according to his work," which is further fortified under Article 38 of the Constitution (Principles of Policy) wherein, yet again, the State has a duty to secure the well-being of the people by raising their standards of living and ensuring equitable adjustment of rights between employer and employees and providing for all citizens, within the available resources of the Country, facilities for work and adequate livelihood, and reducing disparity in income and earnings of individuals.

10. There is no improbability in our mind to put into clear words that the Act was promulgated with the fair intention to accommodate and regularize the services of the contractual employees who gave their blood, toil, tears, and sweat for many years. Therefore, it is the responsibility of the Government to apply and allow the benefit to all employees placed in equal and similar circumstances without any discrimination, and not to pick and choose the employees for conferring the benefit or advantage of this law. The implementation of the Act should be unbiased and non-discriminatory, rather it should be even handed, fair and square. When the law giver enacts any beneficial law, it must be implemented across the board with assiduousness and meticulousness without any conservative or rigid

approach. It is often seen that the implementation of beneficial statutes meant for civil servants and labourers are unnecessarily delayed, which forces the deprived persons to knock the doors of the courts. If the implementation is made in its letter and spirit within a reasonable period of time, then this of course would also decrease unnecessary burden on the court's docket.”

35. The legal position in this behalf stands settled by this Court in the case of Rana Saifullah & others vs. Province of Punjab through Chief Secretary, Lahore & another (**Writ Petition No. 68220 of 2020, decided on 25.10.2021**), wherein while dealing with an identical situation where a project had been converted into non-development side, laid down the following principle in paragraph No.5 of the said judgment:

“Perusal of record shows that petitioners applied for certain posts, passed NTS Test and ultimately they were appointed against different posts in the year 2006. Firstly, the petitioners were appointed against the project posts, however, during currency of their service, the project in question was converted into non-development through Schedule of New Expenditure (SNE) on 16.04.2020. Prima facie petitioners’ posts were also converted to non-development side, which fact finds support from extension of the contract service of petitioners vide order dated 28.07.2020, meaning thereby that they remained no more with any project, but were treated as contract employees of an attached department of the Government of the Punjab for all purposes. It is pertinent to note that petitioners' contract was extended by the Government of Punjab till 30.06.2021 and they have been performing their duties without any break.”

(Underlined for supplying emphasis)

36. The ratio of the aforesaid judgment is squarely applicable to the present case. It is pertinent to mention here that aforementioned order dated 25.10.2021 passed by this Court was challenged before the learned Division Bench of this Court through Intra Court Appeal No.73541 of 2021 by the Province of Punjab, which was disposed of vide order dated 14.09.2022 being no pressed, as Additional Advocate General, Punjab made statement before the Court that the matter had been referred to the respondent-department to place it before the requisite Scrutiny Committee/PPSC for considering the regularization. Although this order was challenged in review petition, however the same was dismissed vide order dated 06.02.2023. Further Civil Petition No.657-L of 2023 was filed by Province of Punjab against the order passed by the learned Division bench in ICA No.73541 of 2023, before the Hon’ble Supreme Court of Pakistan, which was dismissed vide order dated 07.11.2023 thereby upholding order dated 25.10.2023

passed in *Rana Saifullah* supra. Subsequently, Civil Petitions No.3416 of 2023 and 2757-L of 2023 were also filed by Province of Punjab through its Chief Secretary, Lahore, before the apex Court, which were dismissed vide order dated 18.03.2025 thereby upholding the earlier order passed in CPLA No.657-L of 2023.

37. This Court also derives support from the judgment of the Hon'ble Supreme Court of Pakistan dated 05.05.2014 passed in Civil Appeals No. 275 & 276 of 2014 titled Government of the Punjab through Secretary Environment Protection Department, Lahore & another vs. Maqsood Ahmed & others, wherein the Hon'ble Apex Court held, in unequivocal terms, that when a project itself has been transferred to a non-development side as a permanent department of the Government, the nature of the project itself becomes permanent by the act of the Government, and therefore the services of the employees of such a project are to be considered for regularization in the non-development department. The relevant finding recorded in paragraph No. 4 of the said judgment reads as under:

“Considering the case on the above referred documents of the Government itself, it becomes apparent that the development project was transferred to a non-development side and made it a permanent department of the Government with allocation of its own budget etc. So far the employees are concerned, they having been appointed through a regular appointing process, other than entering through back door or on the recommendations of some political entities, apparently are justified in demanding that when the project itself has been transferred to a non-development side as a permanent department of the Government, the nature of the project itself became permanent by the act of Government; therefore, the services of respondents cannot be terminated rather they are entitled to be considered for permanent employment in the non-development department.”

38. It is pertinent to mention here that in W.P. No.32733 of 2023, titled “Ahmad Raza & others vs. Government of Punjab through Secretary, Population Welfare Department, Lahore & others, this Court while dealing with the similar matter also issued direction to the respondents vide order dated 28.03.2024 to examine the cases of petitioners in line of *Rana Saifullah* supra, which was upheld by the Hon'ble Supreme Court in Civil Petition No.2187-L/2023 vide order dated 13.12.2023.

39. The principal contention advanced by the learned Legal Advisor and the learned Law Officer on behalf of the respondents is that the policy

guidelines contained in the S&GAD (Regulations/O&M Wing) letters dated 23.07.2014 and 06.06.2022 operates as a bar to the petitioners' claim for regularization. This contention, however, is not tenable in the facts and circumstances of the present case.

40. The record unequivocally reflects that the then Chief Minister, Punjab, vide order dated 23.12.2021, while expressly relaxing the policy guidelines contained in the S&GAD (Regulations/O&M Wing) letter dated 23.07.2014, approved the extension of the contractual engagements of the petitioners against posts created under the current budget. Thereafter, the Provincial Cabinet, being the competent authority, repeatedly approved extensions in the contractual engagements of the petitioners against sanctioned posts in BS-01 to BS-09 from 01.07.2022 onwards, culminating in the notification issued on 13.04.2026.

41. In the face of these specific approvals granted by the competent authority, the respondents cannot place reliance upon the aforesaid policy guidelines to defeat the petitioners' claim. Once the policy guidelines stood relaxed by the then Chief Minister, Punjab, and the subsequent continuance of the petitioners was repeatedly sanctioned by the Provincial Cabinet, the said policy instructions ceased to have any controlling effect upon the status of the petitioners' appointments. The approvals accorded by the then Chief Minister, Punjab, and thereafter by the Provincial Cabinet, being decisions of the competent authority, prevail over the general policy guidelines to the extent of the petitioners' cases.

42. Consequently, the respondents' reliance upon the policy guidelines dated 23.07.2014 and 06.06.2022 is misconceived, as the petitioners' contractual engagements and their successive extensions were specifically approved by the competent authority through express relaxation and subsequent Cabinet decisions. Therefore, the said policy guidelines cannot be invoked to negate or curtail the legal consequences flowing from the approvals granted by the then Chief Minister, Punjab, and the Provincial Cabinet.

43. The second question relates to the discrimination. It has been brought on record, and cannot be disputed, that similarly placed employees in Primary & Secondary Healthcare Department, Government of Punjab,

whose projects were converted into non-development mode, have been regularized. In the case of W.P. No. 39165/2023 titled Muhammad Imran Iqbal vs. Government of Punjab, etc., the representation was forwarded by this Court to the Secretary, Primary & Secondary Healthcare Department, who vide order bearing No. CL-2/2423 directed the CEO/DHA Jhang to process the cases of the petitioners thereunder for regularization under the Punjab Regularization of Service Act, 2018, on the premise that the posts of the Epidemic Prevention and Control Programme of the Health Department had been converted into non-development mode by the Finance Department, Punjab. In compliance thereof, the CEO, District Health Authority Jhang vide order No. 10805, dated 16.10.2023, regularized the services of the employees concerned.

44. Similarly, in W.P. No. 220773/2018 titled Saqib Baig etc. vs. Government of Punjab, etc., the petitioners were working under the “Dengue Programme” which had been converted into non-development mode, and vide order dated 16.01.2020 passed by this Court, the Secretary was directed to decide the representation of the petitioners. In pursuance thereof, the Secretary, Primary & Secondary Healthcare Department, vide order bearing No. CL-551 dated 10.03.2020, accepted the representations and directed the CEO, District Health Authority, Lahore to proceed to regularize the services of the petitioners and alike-appointed employees. The CEO (DHA), Lahore issued the consequential regularization order No. 3933/E dated 10.07.2024.

45. It is observed that vide notification No.SO(CAB-I)2-18/2018(ROB), dated 27.03.2025, the Governor of Punjab amended the Punjab Government Rules of Business, 2011, whereby the “Population Welfare Department” and the “Primary & Secondary Healthcare Department” were merged into one unified department namely the “Health and Population Department”. As such, employees serving under both wings of the said department now constitute one similarly situated class of employees for all practical purposes of service structure, administrative control and policy implementation. In these circumstances, once similarly situated employees working under the projects converted into non-development mode in the Primary & Secondary Healthcare Department have admittedly been extended the benefit of regularization under the Punjab Regularization of Service Act, 2018, denial of the same treatment to the present petitioners, who are identically placed in

all material particulars, amounts to hostile discrimination and offends the mandate of Articles 9 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973.

46. The Hon'ble Supreme Court of Pakistan has consistently held that other similarly placed employees cannot be discriminated against without any cogent reason, and that it is the duty of the organization to protect the fundamental rights of its employees. Reliance in this regard is placed upon Engineer Naraindas and another vs. Federation of Pakistan and others (2002 SCMR 82), Tehsil Municipal Administration, Rahimyar Khan and others vs. Hanif Masih and others (2008 SCMR 1058), and Ejaz Akbar Kasi and others vs. Ministry of Information and Broadcasting and others (PLD 2011 Supreme Court 22).

47. Before concluding, it is appropriate to observe that the petitioners have been constrained to litigate their grievance before this Court on multiple occasions, having earlier filed W.P. No. 9077/2022, W.P. No. 32733/2023, and W.P. No. 79855/2024. In each of the aforesaid petitions, this Court directed the respondents to consider and decide the petitioners' claims for regularization strictly in accordance with law and the principles settled by the superior Courts.

48. However, notwithstanding the repeated directions of this Court and the departmental instructions issued pursuant thereto, the respondents have persisted in declining the petitioners' claim for regularization. The impugned action demonstrates a failure to properly appreciate and implement the directions issued by this Court in their true letter and spirit, thereby compelling the petitioners to repeatedly seek judicial intervention for the vindication of their rights. Such a course of conduct has resulted in avoidable and protracted litigation, despite the matter having been considered and remanded for lawful determination on more than one occasion.

49. Consequently, in view of the foregoing reasons, the impugned Minutes of Meeting dated 29.05.2024 of the Scrutiny Committee, along with the order dated 28.12.2024 passed by the respondents, are hereby set aside, being illegal and without lawful authority. The matter is remanded to the concerned Security Committees, which shall, after scrutinizing the

credentials of the petitioners, forward their cases to the competent authority for consideration of regularization under the (Repealed) Punjab Regularization Act, 2018 (as amended in 2019). The entire exercise shall be completed within a period of ninety (90) days from the date of receipt of a certified copy of this judgment. Accordingly, these writ petitions are **allowed** in the above terms. Meanwhile, no adverse action shall be taken against the petitioners so as to ensure continuity of services to the general public at the Population Welfare Centers.

(Malik Javid Iqbal Wains)
Judge

Approved For Reporting

Judge

The judgment was announced in Open Court on 25.05.2026, and after completion of file, the same was signed on 09.06.2026.

Usman*